THE BULLOCK PRESIDENCY

Series Bible — Document 09: Executive Orders vs. Bills (The Fix, Made Real)

The governing principle (in character): Marc said at the Atlanta debate, *"As President, I don't get to break the rules. I get to change them. Legally."* So his administration uses **executive orders as bridges** (fast, but limited, open to lawsuits, and reversible by the next President) and **laws as foundations** (slow, but durable). Every big promise in The Fix gets both: an executive order on day one to start the work, and a bill to make it permanent.

1. The Rules of the Road (Real Constitutional Limits)

- **Executive orders** can only direct the executive branch using powers the Constitution or existing laws already give the President. They can't create taxes, spend money Congress hasn't appropriated, or override statutes. Courts strike down orders that overreach; in 2023 the Supreme Court blocked student-debt cancellation done through executive action.
- **Agency rules** (made through formal notice-and-comment rulemaking) sit in the middle. They're stronger than an order, but still have to be authorized by an existing law, and they get challenged in court.
- **Laws** need the House (238–197, a Democratic majority) and the Senate (52–48). Most bills need 60 Senate votes to get past a filibuster. **Budget reconciliation** needs only 51 votes, but only for taxes, spending, and the debt limit, limited to one bill per budget year for each of those areas. Tax bills must start in the House.
- **Treaties** need 67 senators. **Congressional-executive agreements** (the way NAFTA and the USMCA passed) need a simple majority in both chambers.
- **Constitutional amendments** need two-thirds of Congress plus 38 states. Marc has done it once.

2. Day One Executive Orders (Mon Jan 20, 2025)

#	Executive order	What it does	Legal basis / limit
EO 1	**The Clean Government Order**	An ethics pledge for every appointee: no lobbyists in the administration, a two-year cooling-off period, and **a ban on stock trading by senior executive-branch officials**.	Fully within presidential authority over executive personnel (precedent: past ethics pledges). It can't reach Congress, which needs a law.
EO 2	**The Orderly, Secure, Legal Immigration Directive**	Surge immigration judges and asylum officers to clear the backlog. Expand lawful parole and processing pathways, renew Temporary Protected Status designations, protect DACA recipients, end family detention, and modernize ports of entry.	Uses authority under existing immigration law. Full "100% legal immigration" needs Congress. Expect lawsuits from states, as with past parole programs.
EO 3	**The 100-Day Peace Initiative**	Names special envoys and directs State and the National Security Council to convene talks on Ukraine–Russia, Israel–Palestinians (every hostage home, every civilian protected), and the Taiwan Strait.	Foreign policy is core executive power. Any treaty that results needs the Senate.
EO 4	**The North American Partnership Commission**	Creates a commission and directs the U.S. Trade Representative (Omar Haddad) to open formal talks with Canada and Mexico, building on the USMCA's 2026 joint review.	The President can negotiate. Any union or agreement must be approved by Congress.
EO 5	**The American Sovereign Fund Preparation Order**	Directs Treasury (Julian Park) to inventory every federal asset (land, mineral rights, spectrum, patents) and draft the founding legislation within 90 days.	Planning only. The fund itself needs a law.

#	Executive order	What it does	Legal basis / limit
EO 6	**The Affordable Medicine Order**	Directs the health department (HHS) to expand the drug-price negotiations already under the Inflation Reduction Act, speed up insulin and inhaler cost caps, and use federal purchasing power.	Builds on existing law. A cap for everyone, including private insurance, needs Congress.
EO 7	**The Ten Million Homes Order**	Opens surplus federal land for housing, directs housing agencies (HUD and FHFA) to cut red tape and speed up financing, and coordinates zoning incentives with states.	Within agency authority. The money for 10 million homes needs Congress.
EO 8	**The Every Lead Pipe Order**	Requires every lead service line to be replaced within four years using the $15 billion already set aside in the 2021 Bipartisan Infrastructure Law, with Flint first.	Existing funds. Finishing the job nationwide needs more appropriations.
EO 9	**The Clean Energy Acceleration Order**	Federal purchasing of clean power, faster permitting for transmission lines and fusion and fission pilot projects (Theo Nakamura), and EPA rulemaking.	Rules can be challenged in court. Federal permitting reform needs a law.
EO 10	**The Domestic Peace Order**	Creates a National Council on Political Violence after the attacks in Butler and West Palm Beach, sets Justice Department priorities, offers a community-policing partnership program, and sets a de-escalation standard for federal agents.	Executive coordination. Funding needs appropriations.
EO 11	**The No Veteran Waits Order**	A maximum VA wait-time standard, with automatic referral to private (community) care when it's missed (Dre Coleman's promise).	Within existing VA law (the MISSION Act).
EO 12	**The Puerto Rico Equality Task Force**	Hurricane recovery, grid rebuilding, and a review of the Jones Act's impact on the island.	Executive coordination. Jones Act reform and any statehood question need Congress.

3. Bills That Must Become Laws

Bill (story title)	The Fix item	How it passes	Story drama
The Congressional Stock Trading Ban Act	#10 Clean	Regular order with 60 votes. It's about 84% popular and bipartisan.	**First bill signed.** Easy votes in public, quiet resistance in the cloakrooms.
The American Families Reconciliation Act (Universal Healthcare + Universal Education + Childcare + tax relief)	#1, #2, #7, #9	**Budget reconciliation, 51 votes.** The House writes the tax pieces.	The parliamentarian's rulings and the Byrd Rule cut provisions that aren't purely budgetary. Moderate Democrats waver. This is the biggest legislative fight of the first term.
The Working Families Tax Freedom Act (zero federal income tax under $100K, phased in)	#9	Reconciliation, or a second reconciliation bill the following year.	Republicans love the cut and hate the funding source. Tied to the Sovereign Fund.
The American Sovereign Fund Act	#3, #9	Regular order; some pieces can go through reconciliation.	Economists split. Fights over federal land in the West. Julian Park's confirmation hearing previews it.
The National Debt Path Act	#3	Regular order plus the budget process.	Cornelius's lesson: "People forgive ambition, not arithmetic." A 30-year path, written into law.
The Orderly, Secure, Legal Immigration Act	#11	Rewrites the Immigration and Nationality Act. **Needs 60 votes**, or a fight over changing the filibuster.	Simone Smilley's signature fight: Republicans for order, Democrats for openness, and her in the middle.

Bill (story title)	The Fix item	How it passes	Story drama
The North American Partnership Agreement	The dream	A **congressional-executive agreement** (simple majorities) or a treaty (67 votes). Canada and Mexico must also approve it.	Mostly a second-term fight. The sovereignty debate. Sheinbaum and Canada's leadership as real counterparts.
The Ten Million Homes Act	#6, #7	Appropriations plus housing tax credits (reconciliation-eligible).	Local zoning battles. Darnell Price against the NIMBYs.
The Clean America Act (a clean electricity standard, permitting reform, lead pipes finished)	#10	Mixed: some pieces 60 votes, some reconciliation.	Coal-state and oil-state senators, at full strength.
The Superpower Act (chips, AI, shipbuilding, defense modernization)	#8	Rides on the annual defense authorization bill (the NDAA) and appropriations, usually bipartisan.	Caleb Whitaker and the defense hawks. It also plants seeds for 2027 and 2032 (Bible 02).
The Domestic Peace and Protection Act	#5	Regular order.	Secret Service reform after Butler. Simone's DHS oversees the Secret Service.

4. Things That Need a Constitutional Amendment (or the Courts)

- **"Super PACs, gone."** Under *Citizens United* (2010), Congress can't ban independent political spending by statute. Realistic options are disclosure laws (possible by statute) plus a campaign-finance constitutional amendment (the 29th? See the continuity note below).
- **A third term** (Bible 02): the wartime amendment in 2032.
- **Continuity note:** if the campaign-finance amendment passes first, the wartime amendment in 2032 becomes the **30th**. The author decides the order.

5. Recommended First-Term Sequence

When	Action
Mon Jan 20, 2025	Day One: sign EOs 1–12 in the Oval Office. Lyric hands him the pens.
First 30 days	Send the Stock Trading Ban to Congress. It's the quick bipartisan win that builds trust.
First 100 days	The Peace Initiative summits. Launch the reconciliation package. The Sovereign Fund blueprint goes to Congress (EO 5's 90-day deadline).
2025, summer–fall	Reconciliation passes: healthcare, education, childcare, and the first tax cuts.
2025–2026	Bipartisan negotiations on the immigration bill. Sovereign Fund Act. Housing.
Nov 3, 2026	Midterms: can the President's party defy history?
2027	The Taiwan crisis (Bible 02). North American partnership talks formalized.
2028	Re-election. The North American Union becomes the centerpiece of the second term.

Not nerfed: state attorneys general sue over the immigration and energy orders, the Senate parliamentarian strips pieces of the reconciliation bill, and every "100% success" has to be earned on the page through deals, votes, and court wins.